IN THE NATIONAL INDUSTRIAL COURT OF NIGERIA
IN THE LAGOS JUDICIAL DIVISION
HOLDEN AT LAGOS

SUIT NO: NICN/LA/435/2020

BETWEEN

MR. ABEL ADAGBA - CLAIMANT/RESPONDENT

AND

1. **IPBC NIG. LIMITED**
2. **SIR GOODIE IBRU - DEFENDANTS/APPLICANTS**

MOTION ON NOTICE BROUGHT PURSUANT TO SECTION 36 OF THE CONSTITUTION OF THE FEDERAL REPUBLIC OF NIGERIA 1999 (AMENDED), ORDER 57 RULE 4 OF THE NATIONAL INDUSTRIAL COURT OF NIGERIA (CIVIL PROCEDURE) RULES 2017, 15 RULE 1(2) OF THE NATIONAL INDUSTRIAL COURT OF NIGERIA (CIVIL PROCEDURE) RULES 2017 AND UNDER THE INHERENT JURISDICTION OF THIS HONOURABLE COURT

TAKE NOTICE that this Honourable Court will be moved on the …… day of …… 2023 at the hour of 9 0'clock in the forenoon or soon thereafter as counsel to the Claimant/Applicant will be heard for the following orders:

i. **AN ORDER** extending the time within which the Defendants/Applicants may file and serve their Statement of Defence and accompanying court processes pursuant to order of court dated 26th June 2023.

ii. **AN ORDER** deeming the Defendants/Applicants' already filed and served Statement of Defence and accompanying court processes pursuant to order of court dated 26th June 2023 same of which are attached to the Affidavit in support of this application as having been properly filed and served.

And for such orders or further orders as this Honourable Court may deem fit to make in the circumstances.

Dated this…….day of ……2023.

…….
A. Akpojaro
O. E. Oku, esq.
D. O. Fayemi, esq.
T.D. Adewunmi
Ugochukwu N. Onyinyechi, esq.
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FOR SERVICE ON
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C/O His Counsel
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IN THE NATIONAL INDUSTRIAL COURT OF NIGERIA
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SUIT NO: NICN/LA/435/2020

BETWEEN

MR. ABEL ADAGBA - CLAIMANT/RESPONDENT

AND

1. **IPBC NIG. LIMITED**
2. **SIR GOODIE IBRU - DEFENDANTS/APPLICANTS**

AFFIDAVIT IN SUPPORT

I, Samsudeen Adebayo, male, Christian, employee and Nigerian citizen of 30, Mobolaji Bank Anthony Way, Ikeja, Lagos do hereby make oath and state as follows:

1. That I am a worker in the law firm of G. M. Ibru & Co., counsel to the 1st and 2nd Defendants in this suit.
2. That I have the consent and authority of both my employer and of the 1st and 2nd Defendants to depose to this affidavit.
3. That I am informed by counsel directly handling this matter in our law firm, Mr. O.E. Oku, on the 1st December, 2023 that a consequential order dated 26th June, 2023 was made by Honourable Justice A.N. Ubaka on the Defendants/Applicants to file their Amended Statement of Defence together with accompanying court processes and I verily believe him to be true as follows:
   (i) That the Defendant/Applicant was not able to file their Amended Statement of Defence until the 22nd day of November, 2023.
   (ii) That the delay in filing the Defendant/Applicant's Amended Statement of Defence together with accompanying court processes within time was due to some serious logistics problem in our office arising from pressure of work.
   (iii) That Counsel inadvertently forgot to finalise preparation of the documents before going on a leave as at when the processes ought to be filed and served. Efforts were made to complete the preparation of the documents immediately this was noticed at our law firm and Counsel was duly informed of this to make haste.
   (iv) That Counsel became aware that the time frame for filing of the statement of defence has elapsed hence this application.
   (v) That having not filed the said Amended Statement of Defence together with accompanying court processes within time, the Defendant/Applicant now requires the leave of court to file same out of time.
   (vi) That the Defendant/Applicant is ready and willing to diligently defend and prosecute this matter to its logical conclusion.
   (vii) That the delay in filing was neither intentional nor borne out of disrespect to the authority of this Honourable Court.
   (viii) That the said Amended Statement of Defence together with accompanying court processes has now been filed on 22nd November, 2023 and is hereby attached and marked as Exhibit A1.

(ix) That the affidavit of compliance with the payment of default fee together with receipt of payment is hereby attached and marked as Exhibit AB.

4. That the Claimant would not be prejudiced if this application is granted.
5. That it is in the interest of justice to grant this application.
6. That I make this affidavit bona fide.

……

D E P O N E N T

SWORN to at the National Industrial Court, Lagos

This …… day of …….. 2023

BEFORE ME

COMMISSIONER FOR OATHS

IN THE NATIONAL INDUSTRIAL COURT OF NIGERIA
IN THE LAGOS JUDICIAL DIVISION
HOLDEN AT LAGOS

SUIT NO: NICN/LA/435/2020

BETWEEN

MR. ABEL ADAGBA - CLAIMANT/RESPONDENT

AND

1. **IPBC NIG. LIMITED**
2. **SIR GOODIE IBRU - DEFENDANTS/APPLICANTS**

WRITTEN ADDRESS IN SUPPORT OF MOTION ON NOTICE

1. 0 **INTRODUCTION**

This is a motion on notice dated the …… day of ……. 2023 brought pursuant to section 36 of the Constitution of the Federal Republic of Nigeria 1999 (Amended), Order 57 Rule 4 of the National Industrial Court of Nigeria (Civil Procedure) Rules 2017, 15 Rule 1(2) of the National Industrial Court of Nigeria (Civil Procedure) Rules 2017 and under the Inherent Jurisdiction of this Honourable Court. The Defendant/Applicant is by this application praying this Honourable Court for the following reliefs:

i. **AN ORDER** extending the time within which the Defendants/Applicants may file and serve their Statement of Defence and accompanying court processes pursuant to order of court dated 26th June 2023.
ii. **AN ORDER** deeming the Defendants/Applicants' already filed and served Statement of Defence and accompanying court processes pursuant to order of court dated 26th June 2023 same of which are attached to the Affidavit in support of this application as having been properly filed and served.
iii. **And for such orders or further orders** as this Honourable Court may deem fit to make in the circumstances.

1.2 The application is supported by a 6-paragraph affidavit deposed to by one Samsudeen Adebayo, a worker in the law firm of G.M. IBRU & Co, counsel to the Defendants/Applicants. We shall rely on all the paragraphs of the affidavit and the exhibits attached thereto.

2.0 **STATEMENT OF FACTS**

i. From the date of the order of court dated 26th June 2023, the Defendants/Applicants have fourteen days within which they should file their Statement of Defence but could not file it within time as a result of some serious logistics problems in the office of the Counsel to the Defendants/Applicants.
ii. That the Defendants/Applicants have now been able to file and serve the sane out of time hence the need to apply for extension of time.

3.0 **ISSUE FOR DETERMINATION**

3.1 My Lord, we submit that at least the following issue arises for determination by this court:

Whether the Defendants/Applicants have made a case for extension of time within which to file their Statement of Defence.

4.0 **ARGUMENT**

4.1 My Lord, by virtue of **ORDER 57 RULE 4 AND ORDER 15 RULE 1(2) OF THE NATIONAL INDUSTRIAL COURT OF NIGERIA (CIVIL PROCEDURE) RULES 2017 AND UNDER THE INHERENT JURISDICTION OF THIS HONOURABLE COURT**, the Honourable court is empowered to grant an application for extension of time as it deems fit for doing any act or taking any proceedings.

4.2 In the case of **NIPOL LTD V. BIOKU INVESTMENT AND PROPERTY COMPANY LTD (1992) 3 NWLR (PT. 232) 727 AT 746, PARAS. A – B** the Supreme Court held that:

> ***"Where a party or his counsel finds that his cause or matter is incompetent for being filed out of time, it is his responsibility to apply for extension of time to put things right."***

4.3 In the instant case the Defendants/Applicants have brought this application seeking leave of this Honourable Court for extension of time to put things right by filing their Amended Statement of Defence together with accompanying court processes dated 22nd November, 2023 together with accompanying court processes of which are attached to the Affidavit in support of this application and do hereby urge your Lordship to consider this application and grant same.

4.4 In the case of **UNIPRESS LTD V. AKINLUYI (1992) 8 NWLR (PT. 262) 737 at 750, PARAS. E – H**, the court stated what an application for extension of time must prove at page 750, paragraph C, where SALAMI, J.C.A. states inter alia that:

> ***"When a party seeks an extension of time to file a process, the affidavit in support must depose to such facts that the court will accept as good or reasonable reasons for the delay, since the rules of court are meant to be obeyed. Therefore if no excuse is offered, no indulgence should be granted."***

4.5 My Lord, the reason for the filing of the Defendant/Applicant's processes out of time are as contained in paragraphs 3(i - vii) of the affidavit in support of this application.

4.6 We submit that in an application of this nature, the court will not visit the omission of the counsel on the litigant, and will readily exercise its discretion in favour of the applicant if it is shown that the failure by a party to do an act within the period prescribed was not due to the fault of the party. We refer your Lordship to the case of **ONAGORUWA V. UNION BANK LTD (1992) 1 NWLR (PT. 217) 289 AT 295, PARAS. F – H.**

4.7 We submit further that to deny this application will work great injustice against the determination of the essential justice in this case, after due consideration of the merits of the facts brought therein. Please see **BRITISH AMERICAN INSURANCE COMPANY LIMITED V. EDEMA – SILLO (1993) 2 NWLR (PT. 277) 567 AT 577 – 578, PARAS. C-A.**

5.0 **CONCLUSION**

5.1 We urge your Lordship to hold that the Defendants/Applicants have made a case for extension of time to file its processes and graciously grant our prayer on this ground.

5.2 We move in terms of the motion paper. Much obliged!

Dated this…….day of ……2023.

…….
A. Akpojaro
O. E. Oku, esq.
D. O. Fayemi, esq.
T.D. Adewunmi
Ugochukwu N. Onyinyechi, esq.
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